

Message History (3)

On 10/1/2026 5:48:04 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013488-092126

Body:

RE: PUBLIC RECORDS REQUEST of September 21, 2026, **Reference # W013488-092126**

Dear Brian C,

The City received the following records request on September 21, 2026.

Public Records Request — determination that Flock Safety's possession and publication of ALPR search-audit information on the transparency portal constitutes "data hosting" under Civil Code § 1798.90.55(b)

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context

On September 21, 2026, in its determination on request W013438-091426, the Department stated: "The Flock Safety transparency portal is maintained by Flock Safety. The Department does not maintain a separate screenshot, printout, or export of the 'Prohibited Uses' section outside of the information available on the portal."

Civil Code § 1798.90.55(b) permits a public agency's ALPR information to reach a vendor only as a sale, sharing, or transfer to another public agency, or as "the provision of data hosting or towing services," which the statute does not consider a sale, sharing, or transfer. If the transparency portal is maintained by Flock Safety and not the Department, the lawful basis for Flock Safety's possession and publication of the Department's ALPR search-audit information there would need to be something other than hosting on the Department's behalf.

Records requested

1. Any record reflecting a determination that Flock Safety's possession and publication of the Department's ALPR search-audit information on the transparency portal constitutes data hosting under Civil Code § 1798.90.55(b), rather than a sale, sharing, or transfer of that information to Flock Safety. If no responsive record exists, please affirm the search performed.

Thank you.

Brian

A good-faith and diligent search of Department communications was conducted, and no records responsive to your request were identified. The information requested may be addressed in the Master Services Agreement previously provided to you under public records request #W012373-032026.

The City has completed its response to your request and we now consider this record request W013488-092126 closed. If you have any questions, or would like to submit a new request for records, please contact the City.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst I
Police
(650) 522-7664

On 9/21/2026 4:37:19 PM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 9/21/2026 and given the reference number **W013488-092126** for tracking purposes.

Record(s) Requested: Public Records Request — determination that Flock Safety's possession and publication of ALPR search-audit information on the transparency portal constitutes "data hosting" under Civil Code § 1798.90.55(b)

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context

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Records requested

1. Any record reflecting a determination that Flock Safety's possession and publication of the Department's ALPR search-audit information on the transparency portal constitutes data hosting under Civil Code § 1798.90.55(b), rather than a sale, sharing, or transfer of that information to Flock Safety. If no responsive record exists, please affirm the search performed.

Thank you.

Brian

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 9/21/2026 4:37:18 PM, Brian C wrote:

Request Created on Public Portal